

SENATE No. 1539

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to address conflicts of interest in the use of temporary nursing agencies at skilled nursing facilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/24/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/24/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/24/2025</i>
<i>Julian Cyr</i>	<i>Cape and Islands</i>	<i>2/24/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>3/12/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>4/25/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>5/16/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>6/6/2025</i>

SENATE No. 1539

By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 1539) of Dylan A. Fernandes, Rodney M. Elliott, James B. Eldridge, Jason M. Lewis and others for legislation to address conflicts of interest in the use of temporary nursing agencies at skilled nursing facilities. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to address conflicts of interest in the use of temporary nursing agencies at skilled nursing facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding any special or general law to the contrary, the
2 department of public health is directed to amend the state regulations governing temporary
3 nursing agencies procuring or providing temporary employment at a skilled nursing facility (101
4 CMR 345).

5 (b) Such amendment shall require additional reporting from any individual or their family
6 member or a business entity under their operational control that has both ownership interest of 5
7 percent or more of a temporary nursing agency and that is also the holder of an operating license
8 issued to establish or maintain a Massachusetts skilled nursing facility. A temporary nursing
9 agency owned by any such individual or family member or business entity shall be prohibited
10 from procuring or providing temporary employment at a skilled nursing facility jointly owned by
11 the same individual, family member, or entity. Such amended regulations shall define a family

12 member broadly as including but not necessarily limited to the individual owner's spouse,
13 domestic partner, parent, sibling, child, parent of a spouse or domestic partner, grandparent, or
14 grandchild.

15 (c) Prior to and during the process of making the regulatory amendments outlined in the
16 subsections above, the department shall consult with the Massachusetts Senior Care Association,
17 Inc. and 1199 SEIU United Healthcare Workers East.

18 (d) The department of public health shall complete the processes above and file for
19 Emergency Adoption of such amended regulations no later than 180 days after passage of this
20 Act.